



How does diluting local village consent rules threaten the land rights of forest communities?

GS Paper II
Governance
Tribal Rights and
Decentralisation

📖 KNOWLEDGE POINTS

- **Submerging direct victims:** A 70% approval rule lets companies ignore the most damaged villages. For example, a village losing all its land under a dam can be easily outvoted and displaced by distant villages facing little harm.
- **Manipulating village assemblies:** Altering who counts as a tribal community member allows outsiders or officials to divide local assemblies. This makes it easy for project developers to engineer artificial majority support and bypass real community opposition.
- **Dangerous regulatory silence:** The Tribal Affairs Ministry is stepping aside instead of defending forest laws. This leaves big ministries unchecked to quietly change land diversion rules without democratic debate or proper legal protection for tribals.
- **Historical injustice correction:** Parliament passed the Forest Rights Act in 2006 to return customary land ownership to indigenous tribes, ending centuries of unfair displacement that treated traditional forest dwellers as illegal encroachers on ancestral lands.
- **Climate protection services:** Indigenous groups protect biodiversity and carbon sinks through customary forest conservation practices. Stripping their land authority threatens traditional ecological management essential for achieving India's long-term national climate and green development commitments.

📄 QUICK FACTS

- Parliament passed the Forest Rights Act in 2006 to recognize customary land tenure and rectify historical injustices faced by Scheduled Tribes and Other Traditional Forest Dwellers across India.
- The Forest Conservation Rules of 2022 allowed the Union government to grant final forest diversion approval before state authorities verify and settle forest rights with local gram sabhas.
- The Teesta-IV hydroelectric project in Sikkim reflects the conflict between expanding national green energy infrastructure and addressing local tribal resistance against ecological destruction and community displacement.
- The 2013 Land Acquisition Act mandates prior consent of at least 70% of affected families for public-private partnerships and 80% for private projects before acquiring land.

🎯 KEY TAKEAWAY

Allowing partial gram sabha consent leaves directly affected forest hamlets vulnerable to forced displacement, eroding constitutional tribal safeguards and weakening democratic decision-making in vital environmental and resource diversion processes.



How do procedural delays and political friction threaten timely judicial appointments in High Courts?

GS Paper II
Indian Judiciary
Appointment of
Judges

📖 KNOWLEDGE POINTS

- **Consultation timeline ambiguity:** The Memorandum of Procedure lacks a fixed deadline for states to respond. Consequently, state governments can sit on files indefinitely, stalling judicial appointments across multiple High Courts without recording formal objections.
- **Politicising judicial rulings:** Ruling parties often view unfavourable court decisions as personal attacks. When governments face strict judicial scrutiny or sensitive cases, they sometimes weaponise procedural consultations to register displeasure and delay appointments.
- **Deemed consent solution:** Fixing strict time limits for state consultations can end delays. A clear deadline, followed by deemed approval, prevents political disputes from stalling institutional appointments and paralysing higher judicial administration.
- **Article 217 mandate:** Under Article 217 of the Constitution, the President appoints High Court judges after consulting the Chief Justice of India, the state Governor, and, for other judges, the High Court Chief Justice.
- **Rising judicial vacancies:** Delays in finalizing appointments worsen vacancy backlogs in High Courts nationwide. This institutional friction directly increases case pendency and prolongs waiting periods for ordinary citizens seeking constitutional remedies and timely justice.

📄 QUICK FACTS

- The Supreme Court Collegium recommended the elevation of Justice Ashwani Kumar Mishra alongside three other High Court Chief Justices on August 6 before the Centre notified the appointment in September.
- The Supreme Court established a strict benchmark directing the Union government to process and clear judicial appointment names reiterated by the Collegium within three to four weeks.
- Under the Memorandum of Procedure, the Union Law Ministry consults concerned state Chief Ministers and Governors before proposing judicial appointments to the Prime Minister and the President.
- Article 217 of the Constitution governs the appointment of High Court judges, mandating presidential appointment in consultation with the Chief Justice of India, the state Governor, and the Chief Justice.

🎯 KEY TAKEAWAY

Without enforceable consultation deadlines in the Memorandum of Procedure, partisan executive disputes easily stall judicial appointments, eroding institutional decorum, undermining constitutional propriety, and worsening vacancy crises across higher courts.



Why does promoting private space manufacturing cause anxiety regarding ISRO's future autonomy and funding?

GS Paper III
Science and Tech
Space Security and
Indigenisation

KNOWLEDGE POINTS

- **Commercial revenue loss:** Handing over routine launch vehicle manufacturing to private firms strips ISRO of vital commercial earnings. Relying entirely on annual government budgets risks limiting funds needed for expensive research and ambitious deep-space exploration projects.
- **Scientist retention concerns:** Tightening resignation rules highlights growing fears over losing top talent. As private aerospace startups offer attractive opportunities, public research agencies struggle to keep experienced scientists without competitive incentives and clear organizational roles.
- **Preserving operational independence:** Staff worry that changing institutional mandates could invite bureaucratic interference. ISRO's historic success relied on significant operational autonomy, which must be protected even as the agency shifts toward guiding and mentoring private commercial players.
- **IN-SPACe single-window mandate:** The Indian National Space Promotion and Authorization Centre acts as an autonomous single-window regulator. It facilitates private players using ISRO infrastructure, coordinates technology transfers, and promotes non-government entities across space activities.
- **Space economy expansion:** India currently accounts for approximately two percent of the global space economy. Expanding private satellite manufacturing and commercial launch capabilities aims to capture a much larger global market share and generate skilled engineering jobs.

QUICK FACTS

- IN-SPACe operates as an autonomous single-window nodal agency under the Department of Space to authorize, supervise, and promote private sector participation across Indian space activities.
- India currently holds around a two percent share of the global space economy and aims to expand this footprint significantly through domestic private space sector participation.
- ISRO transferred the technology of its Small Satellite Launch Vehicle to public-sector unit Hindustan Aeronautics Limited, transitioning launch manufacturing outside the premier national space agency.
- The Department of Space recently issued an administrative memorandum tightening voluntary retirement and resignation norms for senior scientific personnel engaged in critical national missions like Gaganyaan.

KEY TAKEAWAY

Delegating commercial rocket manufacturing to private industry raises acute funding and talent retention concerns, requiring comprehensive policy safeguards to preserve ISRO's core financial strength, institutional autonomy, and pioneering exploration capabilities.